

the public service, from being elected or sitting and voting as members of the Commons House of Parliament) do or do not extend to certain classes of contracts, agreements and commissions :

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Declaration
as to scope
of 22 Geo. 3.
c. 45 and s. 4
of 41 Geo. 3.
c. 52.

1. It is hereby declared that the House of Commons (Disqualification) Act, 1782, and (so far as it relates to contracts, agreements or commissions) section four of the House of Commons (Disqualifications) Act, 1801, extend only to contracts, agreements or commissions for the furnishing or providing of money to be remitted abroad or wares and merchandise to be used or employed in the service of the public.

Short title.

2. This Act may be cited as the House of Commons Disqualification (Declaration of Law) Act, 1931.

CHAPTER 14.

An Act to provide, during Twelve Months (and, as respects certain places outside the United Kingdom, during Fifteen Months) for the Discipline and Regulation of the Army and Air Force. [29th April 1931.]

WHEREAS the raising or keeping of a standing army within the United Kingdom in time of peace, unless it be with the consent of Parliament, is against law :

And whereas it is adjudged necessary by His Majesty and this present Parliament that a body of land forces should be continued for the safety of the United Kingdom and the defence of the possessions of His Majesty's Crown, and that the whole number of such forces should consist of one hundred and forty-eight thousand, eight hundred, including those to be employed at the depots in the United Kingdom for the training of recruits for

service at home and abroad, but exclusive of the numbers actually serving within His Majesty's Indian possessions, other than Aden :

And whereas under the Air Force (Constitution) Act, 1917, His Majesty is entitled to raise and maintain the air force, and it is judged necessary that the whole number of such force should consist of thirty-two thousand, including those employed as aforesaid, but exclusive of the numbers serving as aforesaid :

7 & 8 Geo. 5.
c. 51.

And whereas it is also judged necessary for the safety of the United Kingdom, and the defence of the possessions of this realm, that a body of Royal Marine forces should be employed in His Majesty's fleet and naval service, under the direction of the Lord High Admiral of the United Kingdom, or the Commissioners for executing the office of Lord High Admiral aforesaid :

And whereas the said marine forces may frequently be quartered or be on shore, or sent to do duty or be on board transport ships or vessels, merchant ships or vessels, or other ships or vessels, or they may be under other circumstances in which they will not be subject to the laws relating to the government of His Majesty's forces by sea :

And whereas no man can be forejudged of life or limb, or subjected in time of peace to any kind of punishment within this realm, by martial law, or in any other manner than by the judgment of his peers and according to the known and established laws of this realm ; yet, nevertheless, it being requisite, for the retaining all the before-mentioned forces, and other persons subject to military law or to the Air Force Act, in their duty, that an exact discipline be observed and that persons belonging to the said forces who mutiny, or stir up sedition, or desert His Majesty's service, or are guilty of crimes and offences to the prejudice of good order and military or air force discipline, be brought to a more exemplary and speedy punishment than the usual forms of the law will allow :

And whereas the Army Act and the Air Force Act will expire in the year one thousand nine hundred and thirty-one on the following days :—

- (a) In Great Britain and certain other places within His Majesty's dominions, on the thirtieth day of April ; and

- (b) Elsewhere, whether within or without His Majesty's dominions, on the thirty-first day of July :

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Short title.

1. This Act may be cited as the Army and Air Force (Annual) Act, 1931.

Army Act and Air Force Act to be in force for specified times.

2.—(1) The Army Act and the Air Force Act shall be and remain in force during the periods hereinafter mentioned, and no longer, unless otherwise provided by Parliament (that is to say) :—

(a) In Great Britain and Northern Ireland, the Channel Islands, and the Isle of Man, from the thirtieth day of April, one thousand nine hundred and thirty-one, to the thirtieth day of April, one thousand nine hundred and thirty-two, both inclusive; and

(b) Elsewhere, whether within or without His Majesty's dominions, from the day, as respects each place, on which but for this Act they would have expired in that place, to the thirty-first day of July, one thousand nine hundred and thirty-two, both inclusive.

(2) The Army Act and the Air Force Act, while in force, shall apply to persons subject to military law or to the Air Force Act, as the case may be, whether within or without His Majesty's dominions.

(3) A person subject to military law or to the Air Force Act shall not be exempted from the provisions of the Army Act or Air Force Act by reason only that the number of the forces for the time being in the service of His Majesty, exclusive of the marine forces, is either greater or less than the numbers hereinbefore mentioned.

Prices in respect of billeting.

3. There shall be paid to the keeper of a victualling house for the accommodation provided by him in pursuance of the Army Act or the Air Force Act the prices specified in the First Schedule to this Act.

AMENDMENTS OF ARMY AND AIR FORCE ACTS.

4. In the provisos to sections seventy-nine and one hundred and sixty-one of the Army Act (which provisos relate to the restoration of forfeited service) for the words "the Army Council may restore" there shall be substituted the words "the Army Council may by general or special regulations provide for the restoration of", and the words "by the Army Council" shall be omitted; and in the proviso to the said section one hundred and sixty-one for the words "good or faithful service" there shall be substituted the words "good and faithful service."

Amendment
of Army
Act, ss. 79,
161.

5. In section eighty-five of the Army Act (which relates to continuance in service after twenty-one years' service) for the words "the total period of service for which he has re-engaged under the last preceding section of this Act, inclusive of any period served in the reserve" there shall be substituted the words "a total period of twenty-one years' service inclusive of any period served in the reserve, but exclusive, in the case of a soldier to whom an order made under the proviso to section seventy-six of this Act applies or has applied, of any period during which he was under eighteen years of age."

Amendment
of Army
Act, s. 85.

6. For the purpose of giving effect to section twenty of the Mental Treatment Act, 1930 (which provides for the discontinuance, as respects England, of the terms "asylum" and "lunatic") the amendments specified in the Second Schedule to this Act shall be made in sections ninety-one and one hundred and thirty of the Army Act.

Amendment
of Army
Act, ss. 91,
130.
20 & 21
Geo. 5. c. 23.

7. References in the three last foregoing sections of this Act to the Army Act shall be deemed to include references to the Air Force Act, and those sections (including the Second Schedule to this Act) shall in their application to the Air Force Act have effect subject to any of the general modifications set out in Part I of the Second Schedule to the Air Force (Constitution) Act, 1917, which apply, and subject also to the modifications that in section five of this Act for the words "twenty-one years' service," wherever those words occur, there shall be substituted the words "twenty-four years' service" and the words "an order made under" shall be omitted.

Application
to Air Force.

SCHEDULES.

Section 3.

FIRST SCHEDULE.

PRICES IN RESPECT OF BILLETING.

Accommodation to be provided.	Maximum Price.
Lodging and attendance for soldier where meals furnished.	Tenpence a night for the first soldier and eightpence a night for each additional soldier.
Breakfast as specified in Part I. of the Second Schedule to the Army Act.	Sevenpence each.
Dinner as so specified - - - -	Tenpence.
Supper as so specified - - - -	Fourpence.
Where no meals furnished, lodging and attendance, and candles, vinegar, salt, and the use of fire, and the necessary utensils for dressing and eating his meat.	Tenpence a night for the first soldier and eightpence a night for each additional soldier.
Stable room and ten pounds of oats, twelve pounds of hay, and eight pounds of straw a day for each horse.	Two shillings and threepence a day.
Stable room without forage - - -	Sixpence a day.
Lodging and attendance for officer - -	Three shillings a night.

Note.—An officer shall pay for his food.

In the application of this Schedule to the Air Force references to Air Force Act and airman shall be substituted for references to Army Act and soldier.

Section 6.

SECOND SCHEDULE.

AMENDMENTS OF ARMY ACT, s. 91.

Throughout the section for the word “asylum” and the words “an asylum” there shall be substituted the words “mental hospital” and the words “a mental hospital” respectively.

In subsection (1) for the word “lunacy” there shall be substituted the words “unsoundness of mind,” and for the word “lunatic” and the word “lunatics” there shall be substituted the words “person of unsound mind” and the words “persons of unsound mind” respectively.

In subsection (2) for the word "lunatics" there shall be substituted the words "persons of unsound mind."

2ND SCH.
—cont.

In subsection (3) the word "and" in the last place but one where that word occurs shall be omitted and at the end of the subsection there shall be added the words "and the expressions 'person of unsound mind' and 'mental hospital' mean in the case of Scotland or Northern Ireland a lunatic and an asylum respectively."

In subsection (4) for the words "a lunatic" there shall be substituted in the first place where those words occur, the words "a person of unsound mind," and, in the second and third places where those words occur, the words "such a person"; and for the words "such lunatic" and for the words "the lunatic" there shall be substituted the words "such person" and the words "the person" respectively.

AMENDMENT OF ARMY ACT, s. 130.

In subsection (5) for the words "an asylum" there shall be substituted the words "a mental hospital."

CHAPTER 15.

An Act to provide for the reception and detention of certain persons of unsound mind in the Royal Naval Hospital at Great Yarmouth and for the treatment therein of certain voluntary patients; to prohibit the taking of legal proceedings in respect of the reception and detention of any person in the said hospital before the commencement of this Act; and for purposes connected with the matters aforesaid.

[29th April 1931.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Subject to the provisions of this Act, in any case where—

(a) it is made to appear to the Admiralty by the separate certificates of two registered medical

Detention
of certain
persons of
unsound
mind in the